BRENDAN NGEHSI NEWANFORBI
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Petitioner, in propria persona

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI, Petitioner, v. CALIFORNIA HIGHWAY PATROL; G. SERRATO, in his official capacity as Captain and Commander of CHP Dublin Area, Respondents.	Case No. 26CV191136 Hon. Jenna M. Whitman, Dept. 25 Hearing: January 8, 2027 9:00 a.m., Department 25 Reservation No. 958052306492 Action filed May 29, 2026 Trial: Not set

[PROPOSED] JUDGMENT ON THE FIRST CAUSE OF ACTION

Review draft. Historical hearing particulars are preserved, not freshly confirmed. Signatures, exhibits, service and current case status require completion.

Findings and disposition

This matter concerns only the surviving First Cause of Action. After considering the evidence received and argument, the Court finds the following material legal or factual error in the April 20, 2026 certification determination:

[Court to specify the established error, the evidence supporting the finding, and why the error is material to the no-qualifying-activity determination.]

That finding is not based merely on survival of demurrer, federal screening, incomplete discovery, or an unproved factual allegation. Counts Two and Three and relief against the dismissed respondents are not adjudicated in Petitioner's favor by this judgment.

The April 20, 2026 denial is set aside. A peremptory writ shall issue directing Respondents California Highway Patrol and G. Serrato, in his official capacity, to reconsider the April 9, 2026 Form I-918 Supplement B request in conformity with Penal Code section 679.10 and the Court's findings.

Scope and compliance

The writ does not require certification unless the applicable statutory conditions are established; it does not authorize reuse of an error the Court has adjudicated. Any unresolved determination remains with the certifying official, subject to the statutory requirements and the binding findings actually made here.

Respondents shall complete reconsideration and file and serve a return describing compliance within [____] days after service of the writ, unless the Court orders otherwise. This is a court-selected compliance period, not a finding that a new statutory request clock automatically began.

The Court retains jurisdiction to determine compliance and make appropriate enforcement orders. No fixed 36-month retention, automatic sanction, damages award or immigration-status determination is imposed.

IT IS SO ORDERED AND ADJUDGED.

DATED: _____

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JUDGE OF THE SUPERIOR COURT